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County: los-angeles

Division: Civil Law and Motion

Department: G

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Case Number: 25PSCV03215 Hearing Date: September 29, 2026 Dept: G

Defendants

City of Alhambra, Alhambra Police Department, and Garrett Kennedy's Motion for Judgment on the Pleadings

Respondent:

Plaintiff Dann L. Duncan

Plaintiff

Dann L. Duncan's Motion for Sanctions

Respondent:

Defendants City of Alhambra, Alhambra Police Department, and Garrett Kennedy

TENTATIVE

RULING

Defendants

City of Alhambra, Alhambra Police Department, and Garrett Kennedy's Motion for Judgment on the Pleadings is GRANTED IN PART WITH LEAVE TO AMEND and GRANTED IN PART WITHOUT LEAVE TO AMEND.

Plaintiff

Dann L. Duncan's Motion for Sanctions is deemed MOOT.

BACKGROUND

This

is a contractual fraud action. On

September 30, 1986, plaintiff Dann L. Duncan (Duncan) allegedly submitted a signed CalPERS Application for Industrial Disability Retirement (the Application) to defendant City of Alhambra (the City).

On November 15, 2024, the City allegedly sent Duncan a copy of the Application upon his request, and Duncan discovered alleged forgeries in the Application, including an unauthorized signature and an erroneous date for Duncan's final day of work. Between December 30, 2024

and January 9, 2025, Duncan allegedly sent six messages to defendant Garrett Kennedy (Kennedy), the chief of defendant Alhambra Police Department (the Police Department), to discuss the renewal of Duncan's Honorably Retired APD ID Card (ID card) with Concealed Carry Weapons Permit (CCW permit) and the alleged forgeries in the Application, but Kennedy allegedly failed to respond. On January 13, 2025, Duncan allegedly addressed the Alhambra City Council (the City Council) and Duncan at a scheduled public meeting to request the renewal of his ID card with CCW permit and a fraud disclosure on the Application.

To date, the City, the Police Department, and Kennedy (collectively, Defendants) have allegedly failed to acquiesce to Duncan's requests.

On

September 5, 2025, Duncan filed the Complaint, alleging causes of action for (1) breach of contract, (2) fraud, (3) promissory fraud, (4) intentional misrepresentation, (5) breach of the implied covenant of good faith and fair dealing, (6) breach of the implied duty to perform with reasonable care (negligence), (7) failure to perform a mandatory duty, (8) disparate treatment, and (9) conspiracy.

On

July 1, 2026, Defendants filed the motion for judgment on the pleadings, which is unopposed. (Duncan filed an opposition to the request for judicial notice in support of the motion but did not file an opposition to the motion itself.)

On

July 13, 2026, Duncan filed the motion for sanctions. On August 20, 2026, Defendants filed the reply, and on August 25, 2026, Duncan filed the reply (which is labeled as an opposition.)

On

September 3, 2026, the court continued the hearing on the motions. The motions are set for a continued hearing on September 29, 2026.

REQUESTS
FOR JUDICIAL NOTICE

The
City requests the court to take judicial notice of court records, a hearing transcript from a proceeding before a public entity, and local laws. The court may take judicial notice of regulations and legislative enactments issued by any public entity in the United States, the records of any California court, and facts and propositions that are not reasonably subject to dispute. (See Evid. Code, § 452, subds. (b), (d)(1), (h).)

Thus,
the court takes judicial notice of the requested records.

Duncan
requests the court to take judicial notice of court records, decisional and statutory law, California Rules of Court, and California Civil Jury Instructions. The court may take
judicial notice of the statutory law of California, the records of any California or federal court, the California Rules of Court, and facts and propositions that are not reasonably subject to dispute. (See Evid. Code, § 452, subds. (a), (d)–(e), (h).)

Thus, the court takes judicial notice of the
requested records. (The court does not
take judicial notice of Item 34, Exhibit HH, which was not attached to the request for judicial notice or encompassed by Evidence Code section 452.)

MOTION
FOR JUDGMENT ON THE PLEADINGS

Defendants
move for judgment on the pleadings to each of Duncan's causes of action. For the following reasons, the motion for judgment on the pleadings is GRANTED IN PART WITH LEAVE TO AMEND and GRANTED IN PART WITHOUT LEAVE TO AMEND.

Statute
of Limitations

Legal

Standard

A

motion for judgment on the pleadings will not lie where the action may be, but is not necessarily, barred. (See *Marshall v. Gibson, Dunn & Crutcher* (1995) 37 Cal.App.4th 1397, 1403, applying the rule to a demurrer; see also *Wise v. Pacific Gas & Electric Co.* (2005) 132 Cal.App.4th 725, 738, holding that a motion for judgment on the pleadings is akin to a demurrer.) For the bar of the statute of limitations to be raised by a motion for judgment on the pleadings, “the defect must clearly and affirmatively appear on the face of the complaint; it is not enough that the complaint shows that the action may be barred.” (See *Marshall*, supra, at 1403, applying the rule to a demurrer.)

“In

order to rely on the discovery rule for delayed accrual of a cause of action, a plaintiff whose complaint shows on its face that [their] claim would be barred without the benefit of the discovery rule must specifically plead facts to show (1) the time and manner of discovery and (2) the inability to have made earlier discovery despite reasonable diligence.” (*Fox v. Ethicon Endo-Surgery, Inc.* (2005) 35 Cal.4th 797, 808, cleaned up.)

Discussion

As

a preliminary matter, Defendants include the second, third, fourth, sixth, and ninth causes of action in the appropriate subheading for their arguments regarding the statute of limitations, but their arguments only relate to the second, third, and fourth causes of action (not the sixth and ninth causes of action).

Defendants

argue that the second, third, and fourth causes of actions are barred by the statute of limitations for claims based on fraud. The court agrees.

Fraud

claims are subject to a three-year statute of limitations. (See Code Civ. Proc., § 338, subd. (d).) Furthermore, “[t]he cause of action . . . is not deemed to have accrued until the discovery, by the

aggrieved party, of the facts constituting the fraud or mistake.” (Ibid.) “[A] cause of action for fraud or mistake accrues, and the limitations period commences to run, when the aggrieved party could have discovered the fraud or mistake through the exercise of reasonable diligence.” (Sun’n Sand, Inc. v. United Cal. Bank (1978) 21 Cal.3d 671, 701.)

The plaintiff “must affirmatively excuse [their] failure to discover the fraud . . . by establishing facts showing that [they were] not negligent in failing to make the discovery sooner and that [they] had no actual or presumptive knowledge of facts sufficient to put [them] on inquiry.” (Id. at 701–702, emphasis and citation removed.)

Here,

the second, third, and fourth causes of action are based on the allegation that the City forged Duncan’s signature on the Application. (See Compl., ¶¶ 19–21, 31–33, 41–42.) According to the hearing transcript from the

City’s Civil Service Commission, Duncan reviewed the Application and acknowledged on January 30, 1987 that the signature was his attorney’s, who he authorized to sign the document on his behalf.

(See RJN, Exh. 2, pp. 227–228.) Since

Duncan reviewed the Application and acknowledged the signature on January 30, 1987, the statute of limitations expired on January 30, 1990. (See Code Civ. Proc., § 338, subd. (d); see also Sun’n Sand, Inc., supra, at 701–702.)

Therefore, the motion for judgment on the pleadings is GRANTED WITHOUT LEAVE TO AMEND as to the second, third, and fourth causes of action based on the statute of limitations.

Issue Preclusion

Legal Standard

The legal principle of res judicata bars a party from relitigating a claim or issue already decided in a previous proceeding. Res judicata may take the form of claim preclusion, barring a cause of action where (1) the present proceeding is on the same cause of action as the prior proceeding; (2) there was a final judgment on the merits; (3) the parties in the present proceeding or parties in privity with them were parties to the prior proceeding. (See Central Delta Water Agency v. Dept. of Water

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Cal.App.5th 170, 206.) Res judicata may

also take the form of issue preclusion, barring the adjudication of an issue where (1) the present proceeding is deciding the same issue as the prior proceeding; (2) there was a final adjudication on the merits; (3) the issue was actually litigated and necessarily decided in the prior proceeding; and (4) the parties in the present proceeding or parties in privity with them were parties to the prior proceeding. (See *DKN Holdings LLC v. Faerber* (2015) 61 Cal.4th 813, 825.)

Discussion

Defendants argue that the first, third, fifth, and seventh causes of actions are barred by issue preclusion. The court agrees.

As stated above, issue preclusion applies where (1) the present proceeding is deciding the same issue as the prior proceeding; (2) there was a final adjudication on the merits; (3) the issue was actually litigated and necessarily decided in the prior proceeding; and (4) the parties in the present proceeding or parties in privity with them were parties to the prior proceeding. (See *DKN Holdings LLC*, supra, 61 Cal.4th at 825.)

For the first element, the first, third, fifth, and seventh causes of action are based, in part, on Duncan's asserted right to a CCW permit pursuant to his former employment with the Police Department, which was subject to a previous petition for writ of mandate in *Dann Duncan v. City of Alhambra Police Dept.* (case no. GS005763). (See

Compl., ¶¶ 11, 15–16, 29, 31,

48, 51, 61, 64–66, 84; see

also RJN, Exh. 4, Opp. to Pet. for

Writ of Mandate, p. 2, stating that Duncan “is requesting that this Court order [the City] to give him a CCW endorsement.”)

For the second and third elements, the court called the petition for hearing and ultimately denied the petition.

(See RJN, Exh. 5.)

For the fourth element, the parties to the petition were Duncan and the City, by and through, the Police Department, and its then-chief, Lawrence Lewis, Kennedy's predecessor. (See

RJN, Exh. 4, Mot. for Hrg. on Pet. For Writ of Mandate, p. 1.) Thus, issue preclusion applies to bar Duncan from relitigating his entitlement to a CCW permit.

Therefore,
the motion for judgment on the pleading is GRANTED WITHOUT LEAVE TO AMEND as
to the first, third, fifth, and seventh causes of action based on issue
preclusion. The court acknowledges that
it found separate grounds, stated above, related to the third cause of action upon
which it also granted Defendants' motion.

Failure
as a Matter of Law

Legal
Standard

A
defendant may move for judgment on the pleadings when the "complaint does not
state facts sufficient to constitute a cause of action against that
defendant." (Code Civ. Proc., § 438, subd. (c)(1)(B)(ii).) "A motion for
judgment on the pleadings is akin to a general demurrer; it tests the
sufficiency of the complaint to state a cause of action. The court must assume the truth of all
factual allegations in the complaint, along with matters subject to judicial
notice." (Wise, supra, 132
Cal.App.4th at 738, internal citation omitted.)

Discussion

Defendants
include the first, third, fifth, eighth, and ninth causes of action in the
appropriate subheadings for their arguments regarding failure as a matter of
law, but to avoid unnecessarily duplicative rulings on causes of action where
the court already declines leave to amend, the court only considers Defendants'
arguments as to the eighth and ninth causes of action.

Eighth
Cause of Action: Disparate Treatment

Defendants
argue that the eighth cause of action for disparate treatment fails as a matter
of law. The court agrees.

A

plaintiff alleging discrimination must allege “that (1) he was a member of a protected class, (2) he was qualified for the position he sought or was performing competently in the position he held, (3) he suffered an adverse employment action, such as termination, demotion, or denial of an available job, and (4) some other circumstance suggests discriminatory motive.” (Guz v. Bechtel Nat. Inc. (2000) 24 Cal.4th 317, 355.)

For

the second element, the Complaint alleges that Duncan was a qualified law enforcement officer who earned promotions and a bachelor of science, a master of public administration, and a juris doctor degree. (See Compl., ¶¶ 73, 76.) For the third element, Duncan alleges “retaliation and hostile work environment.”

(Compl., ¶ 74.) For the fourth

element, the Complaint alleges that Duncan only suffered adverse employment actions after he reported “improper employment practices” and “improper use of public funds.” (Compl., ¶ 74.)

However,

the Complaint does not allege that Duncan suffered an adverse employment action as the result of his membership in a protected class. (See

Guz, supra, 24 Cal.4th at 355; see also Gov. Code, § 12926, subds. (l), (o), listing the protected classes as “race, religious creed, color, national origin, ancestry, physical disability, mental disability, medical condition, genetic information, marital status, sex, age, sexual orientation, reproductive health decisionmaking, or veteran or military status.”) Thus, the eighth cause of action fails as a matter of law because the Complaint does not state sufficient facts.

Moreover, it is unclear whether the eighth cause of action is based on past or prospective conduct.

For Defendants’ alleged past conduct, the Complaint alleges that the parties engaged in “four years of litigation,” which resulted in “[u]nemployment [b]enefits,” “employment reinstatement,” and a “workers’ compensation award.” (Compl., ¶¶

74–75.) If the eighth cause of action is

based on this past conduct, and if a court already adjudicated these issues, then this cause of action is also subject to issue preclusion. For Defendants’ alleged current and future conduct, the Complaint does not allege any substantive facts, only that Defendants “continue to engage in despicable conduct, acting with bias and retaliation.” In other words, the court cannot determine the conduct upon which this cause of action is based. Thus, the eighth cause of action also fails

as a matter of law because it is vague and uncertain.

Therefore,

the motion for judgment on the pleadings as to the eighth cause of action based on its failure as a matter of law is GRANTED WITH LEAVE TO AMEND.

Ninth

Cause of Action: Conspiracy

Defendants

argue that the ninth cause of action for conspiracy fails as a matter of law. The court agrees.

“Civil

conspiracy is not an independent tort.

Instead, it is a legal doctrine that imposes liability on persons who, although not actually committing a tort themselves, share with the immediate tortfeasors a common plan or design in its perpetration.” (City of Industry v. City of Fillmore (2011) 198 Cal.App.4th 191, 211–212, cleaned up.) “The elements of a civil conspiracy are (1) the formation of a group of two or more persons who agreed to a common plan or design to commit a tortious act; (2) a wrongful act committed pursuant to the agreement; and (3) resulting damages.” (Id. at 212.)

For

the first element, the Complaint alleges that the City formed a group to deprive Duncan of benefits. (See Compl.,

¶¶ 79–81.) For the second element,

Duncan alleges that Defendants’ agent forged his signature on the

Application. (See Compl., ¶ 81.) For the third element, the Complaint alleges

that Duncan lost his benefits. (See Compl.,

¶ 81.)

Nevertheless,

even though Duncan alleges facts for each element of civil conspiracy, as stated above, civil conspiracy only imposes liability for tortfeasors where there is an underlying tort. (See

City of Industry, supra, 198 Cal.App.4th at 211–212.) The underlying tort for Duncan’s civil conspiracy cause of action is fraud, which is barred by the statute of limitations. Since Duncan cannot assert

causes of action for the underlying fraud, he cannot assert a cause of action for conspiracy to commit that fraud.

Therefore,

the motion for judgment on the pleadings is GRANTED WITHOUT LEAVE TO AMEND as to the ninth cause of action based on its failure as a matter of law.

Compliance

with the Government Claims Act

Legal

Standard

Timely

claim presentation under the Government Claims Act is not merely a procedural requirement but is a condition precedent to the claimant's ability to maintain an action against the public entity. (See

Cal. Restaurant Management Systems v. City of San Diego (2011) 195

Cal.App.4th 1581, 1591.) The timely

filing of a written government claim is an essential element that a plaintiff

is required to prove to prevail on their cause of action. (See Willis v. City of Carlsbad (2020)

48 Cal.App.5th 1104, 1119; see also V.C. v. Los Angeles Unified School Dist.

(2006) 139 Cal.App.4th 499, 509.) A

complaint that fails to allege facts showing a timely presentation of a claim,

or that such presentation was excused, is subject to a general demurrer for not

stating facts sufficient to constitute a cause of action. (See Willis, supra, at 1119.)

Discussion

Defendants

include all causes of action in the appropriate subheading for their arguments regarding failure as a matter of law, but to avoid unnecessarily duplicative rulings on causes of action where the court already declines leave to amend, the court only considers Defendants' arguments as to the sixth and eighth causes of action.

Defendants

argue that Duncan failed to comply with the requirements of the Government Claims Act and failed to allege that he complied with the Government Claims Act. The court agrees.

An

injured party must present a claim for damages to a government entity before filing any lawsuit for damages against that entity, and the injured party may only bring suit against the entity after the claim is rejected. (See Gov. Code, §§ 905, 910, 945.4.) Any suit brought against a public entity where written notice is provided must commence within six months of delivery of the rejection of the government claim. (See Gov. Code, § 945.6.) Furthermore, claims for personal injury must be presented not later than six months after the accrual of the cause of action. (See Willis, supra, 48 Cal.App.5th at 1118.)

Here,

the Complaint does not allege that Duncan filed a government claim before he initiated this action or is otherwise excused from filing a government claim before filing suit. (See generally Compl.) Thus, the Complaint fails to state sufficient facts to support any claims against public entities.

Therefore,

the motion for judgment on the pleading is GRANTED WITH LEAVE TO AMEND as to the sixth and eighth causes of action based on the failure to comply with the Government Claims Act.

MOTION

FOR SANCTIONS

Since

the court grants the motion for judgment on the pleadings with leave to amend, the motion for sanctions is deemed MOOT.

CONCLUSION

For

these reasons, the motion for judgment on the pleadings is GRANTED WITH LEAVE TO AMEND as to the sixth and eighth causes of action and GRANTED WITHOUT LEAVE TO AMEND as to the first, second, third, fourth, fifth, seventh, and ninth causes of action.

The

motion for sanctions is deemed MOOT.